

24STCV03531 24STCV03531

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-23

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C617%2C06%2F23%2F2026

Source SHA-256: 098078ee238a7d19cbc912913590c6d82d9dbf6920fb08a7e1fcb5bd5ba38dab

Case Number: 24STCV03531 Hearing Date: June 23, 2026 Dept: 617

Dept.

617

Date:

6-23-26

Case

#: 24STCV03531

Trial

Date: None Set

TERMINATING SANCTIONS

MOVING

PARTY: Defendant, Vincent H. Ho, M.D.

RESPONDING

PARTY: Plaintiff, Tammy Woloski

RELIEF

REQUESTED

Motion

for Terminating Sanctions

SUMMARY

OF ACTION

On

June 2, 2022, Plaintiff Tammy Woloski's father, Yucai Gong, was admitted to San

Gabriel Medical Center after he suffered a stroke. Plaintiff alleges numerous

delays, omissions, and errors in Gong's treatment caused his condition to

worsen and for him to experience irreversible brain damage. Gong was later

admitted to USC Arcadia Hospital. Plaintiff claims that USC Arcadia then

transferred her father to Kindred Hospital San Gabriel (Kindred), a lower level

of care facility, in an unstable condition despite Plaintiff's objections. Gong

later passed away there. Plaintiff sues San Gabriel Medical Center and Kindred,

as well as doctors and nurses, for wrongful death. She also asserts a claim for

violation of the Emergency Medical Treatment and Labor Act (EMTALA) against USC

Arcadia Hospital and Kindred arising out of Gong's transfer to Kindred.

Plaintiff's First Amended Complaint also indicates a claim for "Abuse and

Discrimination." On June 12, 2026, the Court sustained the demurrer to the

First Amended Complaint with leave to amend.

RULING: Denied.

Defendant Vincent H. Ho,

M.D. moves for terminating sanctions against Plaintiff based on her failure to comply with the Court's orders to provide further discovery responses and pay monetary sanctions. Plaintiff opposes the motion, arguing that terminating sanctions are not warranted since she served the responses and paid the sanctions following Defendant's filing of the motion. Defendant's motion is denied.

"Discovery

sanctions 'should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied

discovery.'" (Young v. Rosenthal (1989) 212 Cal.App.3d 96, 118-19,

citing Deyo v. Kilbourne (1978) 84 Cal.App.3d 771,

793; Newland v. Superior Court (1995) 40 Cal.App.4th 608,

613.) A prerequisite to the imposition of the dismissal sanction is that the

party has willfully failed to comply with a court order. (Mileikowsky v.

Tenet Healthsystem (2005) 128 Cal.App.4th 262, 279-80; Laguna

Auto Body v. Farmers Ins. Exchange (1991) 231 Cal.App.3d 481, 487,

overruled on other grounds in Garcia v. McCutchen (1997)

16 Cal.4th 469, 478, fn. 4.); Young, supra, 212

Cal.App.3d at p. 114.) Preventing parties from presenting their cases on the merits is a drastic measure; terminating sanctions should only be ordered when there has been previous noncompliance with a rule or order and it appears a less severe sanction would not be effective. (Link v. Cater (1998) 60 Cal.App.4th 1315, 1326; Dept. of Forestry & Fire Protection v. Howell, (2017) 18 Cal.App.5th 154, 191 [“Terminating sanctions are to be used sparingly because of the drastic effect of their application”].)

“The discovery statutes thus ‘evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.’ (Citation.) Although in extreme cases a court has the authority to order a terminating sanction as a first measure (Citations), a terminating sanction should generally not be imposed until the court has attempted less severe alternatives and found them to be unsuccessful and/or the record clearly shows lesser sanctions would be ineffective.” (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604.) To avoid sanctions, the burden of proving that a discovery violation was not willful is on the party on whom the discovery was served. (Cornwall v. Santa Monica Dairy Co. (1977) 66 Cal.App.3d 250, 252-53.)

Terminating

sanctions are not appropriate here. Plaintiff served further discovery responses and paid the ordered sanctions, albeit 5 days late, on December 24, 2025. [Woloski Decl. ¶¶ 7-12, Exs. A-C, F-H.] Defendant in reply represents that responses to certain interrogatories and requests for production were deficient but does not elaborate on how so. Imposing terminating sanctions under these circumstances would thus not further the purposes of discovery but rather constitute an impermissible punishment on Plaintiff. (Cf. *Morgan v. Ransom* (1979) 95 Cal.App.3d 664, 669-70 [dismissal for plaintiff's untimely service of discovery responses absent prejudice to defendant "was not remedial, but punitive"].) Defendant does not otherwise seek monetary sanctions against Plaintiff for the untimely responses and payment of sanctions. Defendant's motion is therefore denied.

Defendant

to give notice.